

25NNCV07958 25NNCV07958

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV07958 Hearing Date: July 31, 2026 Dept: A

TENTATIVE RULING

JULY 31, 2026

MOTION TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 25NNCV07958

MP: Plaintiffs

Tereza Shahbazian and Emil Golanians

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be

given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Tereza Shahbazian and

Emil Golanians ("Plaintiffs") allege that

on February 26, 2023, they purchased a 2023 Honda CR-V, which was accompanied

by express and implied warranties from American Honda Motor Co., Inc. ("Defendant"). Plaintiffs assert that the vehicle was delivered

with serious defects and nonconformities to the warranty, including transmission, suspension, structural, and electrical system defects. Plaintiffs claim that despite a reasonable number of repair attempts, Defendant was unable to conform the vehicle to applicable warranties.

The Complaint,

filed November 7, 2025, alleges causes of action for: (1) Violation of

Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly

Act – Breach of Implied Warranty; and (3) Violation of the Song-Beverly Act, §

1793.2.

MOTION ON CALENDAR:

On April 24, 2026, Plaintiffs

filed a Motion to Compel Defendant's Further Responses to Requests for

Production of Documents, set one ("RPD").

The Court is not in receipt of an

opposition brief. The Court notes that,

pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed

consent to its being granted.

LEGAL STANDARD:

A motion to

compel further RPD responses may be brought based on: (1) incomplete statements

of compliance; (2) inadequate, evasive, or incomplete claims of inability to

comply; or (3) unmerited or overly generalized objections. (C.C.P. §

2031.310(a).)

A motion to

compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand and be accompanied by a meet and confer declaration. (C.C.P. § 2031.310(b)(1).) “Good cause” is shown by “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2031.310(c).)

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court of Los Angeles County (2002) 95 Cal. App.4th 92, 98.)

ANALYSIS:

Plaintiffs move to compel Defendant’s further responses to RPD Nos. 1-30.

Plaintiffs propounded the RPDs on February 27, 2026 and Defendant responded with objections on April 15, 2026. (Ardi Decl., ¶¶11-12, Ex. 1 [RPD], Ex. 2 [RPD Responses].) On April 22, 2026, Plaintiffs’ counsel emailed defense counsel, requesting the documents promised in Defendant’s first set of responses and the parties agreed to meet and confer via telephone. (Id., ¶15.) On April 24, 2026, counsel conducted a meet-and-confer telephone call but were unable to reach an agreement on whether Defendant would provide supplemental responses. (Id., ¶¶14, 16, Ex. 3.)

Plaintiffs argue that the documents are relevant as they relate to Plaintiffs’ SBA claims; Plaintiffs’ own vehicle; Defendant’s warranty and replacement/repurchase policies, procedures, and practices; and Defendant’s knowledge of the same or similar defects in other vehicles of the same year, make, and model as the subject vehicle. (Mot. at pp.6-9.)

Defendant has not

opposed the motion. As noted above,
Defendant's failure to oppose the motion may be deemed as consent to its being
granted. Furthermore, it is Defendant's
burden, as the objecting party, to justify its objections, which it has failed
to do.

As such, the motion
to compel Defendant's further responses to RPD Nos. 1-30 is granted.

Plaintiffs did not request sanctions.

RULING:

In the event a party
requests a signed order or the court in its discretion elects to sign a formal
order, the following form will be either electronically signed or signed in
hard copy and entered into the court's records.

ORDER

Plaintiffs Tereza

Shahbazian and Emil Golanians's Motion to Compel Further Responses came on regularly for
hearing on July 31, 2026, with appearances/submissions as noted in the minute
order for said hearing, and the court, being fully advised in the premises, did
then and there rule as follows:

The

Motion to Compel Defendant's Further Responses to RPD, set one, NOS. 1-30 is
granted. Defendant is ordered to provide
further responses within 30 days.

PLAINTIFF

TEREZA SHAHBAZIAN TO GIVE NOTICE.

IT IS SO ORDERED.